

Sandslide employees were aware of this information and loaded the truck in willful or conscious disregard of such requirements. Therefore, the factual allegations are insufficient to support the conclusory assertion that Sandslide knew that the weight of this truck would “likely” cause it to crash.

16. *Melendez v. Kennedy, et al*, Case No. CIVSB2530506
Specially Appearing Defendant Kennedy’s Motion to Quash Service of Summons and Complaint
6/16/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: The Court would **SUSTAIN** Plaintiff’s evidentiary objection numbers 1 and 3. The Court would **OVERRULE** objection numbers 2 and 4.

As to the Motion: The Court would **DENY**.

Case Summary

This is a motor vehicle accident case. Plaintiff alleges that on October 18, 2023, Defendants negligently operated their vehicles by driving at an unsafe speed and caused an automotive accident in Fontana. Plaintiff alleges he incurred injuries and damages. As such, he filed a suit on October 16, 2025, alleging causes of action for (1) motor vehicle and (2) general negligence.

Summary of the Law

The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.) Without substantial compliance with the statutory requirements for service of summons personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) A defendant on or before the last day to plead, or any further time that the court for good cause allows, may bring a motion to quash service of summons because the court lacks jurisdiction. (Code Civ. Proc., § 418.10(a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Analysis

Here, Defendant Kennedy specially appears and moves to quash service.

Plaintiff's counsel testifies that the address for service was obtained from the Traffic Collision Report, which identified Defendant Kennedy's address. (McFadden Decl., ¶13.) Further, beginning as of October 16, 2025, Plaintiff retained an agency to effectuate service, and on November 4, 9, 13, and 15, of 2025, the agency attempted service. On December 5, 2026, the agency completed and executed two declarations to assert "Reasonable Diligence" regarding service attempts on Kennedy. (McFadden Decl., ¶12 & Exh. A.) Thereafter, in February of 2026, Plaintiff retained another service to work on service of Defendant Kennedy. That agency used a registered process server and utilized a "skip trace" to verify Defendant Kennedy's address. (McFadden Decl., ¶¶4-5 & Exh. B.) Attempts were made at service on February 20, 21, and 22, 2026.

Ultimately, Plaintiff's agency indicated a successful service on February 23, 2026, at 7:16 AM. On March 13, 2026, Plaintiff filed a *Proof of Service* (POS) indicating substitute service having occurred as to Defendant Kennedy. The substitute service – which was effectuated by a registered process server – indicated that it was served on Defendant's brother and co-occupant. When service is done by a registered process server, there is a rebuttable presumption as to the stated facts. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant Kennedy was required to rebut the presumption of proper service arising from the process server's declaration with evidence that he was not so served. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) However, Defendant Kennedy did *not* present any evidence demonstrating that he did not live at the service address; that Robert "Doe" could not accept substitute service for him; or anything else along those lines. Rather, the only "evidence" presented is an attorney declaration stating that Defendant Kennedy did not live at the address in question. However, this assertion was made without any foundation and was not based on personal knowledge. In total, Defendant Kennedy failed to rebut the presumption of correct service and failed to produce evidence of non-service.
